

**ORDER SHEET**  
**IN THE LAHORE HIGH COURT**  
**BAHAWALPUR BENCH BAHAWALPUR**  
JUDICIAL DEPARTMENT

**Crl. Misc. No.1747-B/2019**

Bashir Ahmad      **Vs.**      The State and another

| S.No. of order/<br>proceeding | Date of order/<br>proceeding. | Order with signatures of Judge, and that of parties or counsel, where<br>necessary. |
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| 30.08.2019 | Mr. Muhammad Umair Mohsin, Advocate for the petitioner.<br>Mr. Muhammad Sharif Bhatti, Advocate for<br>complainant/respondent No.2.<br>Ch. Asghar Ali Gill, Deputy Prosecutor General with Azmat,<br>Inspector. |  |
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Through the instant petition under section 497 Cr.P.C.  
the petitioner namely Bashir Ahmad is seeking post-arrest bail in  
the case FIR No.100 of 2019 dated 25.03.2019 registered at with  
Police Station Maroot, District Bahawalnagar, in respect of  
offences under sections 302, 367, 337-A(i), 337-F(i), 337-F(v),  
337-A(ii), 337-L(2), 148 and 149 PPC..

2.      The allegation as against the petitioner namely Bashir  
Ahmad, culled from the evidentiary material placed before the  
Court, is that he while armed with a *Sota* gave beating to the  
deceased namely Muhammad Khan hitting him on his back and  
hips after having abducted him and taking him to the house of co-  
accused Shabbir Hussain. The deceased namely Muhammad Khan  
succumbed to the injuries allegedly caused by the petitioner and  
his co-accused named in the FIR.

3. I have heard the learned counsel for the parties and have gone through the record of this case with their able assistance.

4. As per the prosecution case the allegations against the petitioner are couched in generalized and collective terms that he alongwith his co-accused namely Irshad, Shabbir and Ameer Bakhsh alias Bagga, while armed with *Sotas*, gave beating to the deceased namely Muhammad Khan hitting him on his back and hips after having abducted him and taking him to the house of co-accused Shabbir Hussain. No specific injury has been attributed to the petitioner either in the FIR or in the statements of the witnesses recorded under section 161 Cr.P.C. The learned Deputy Prosecutor General, after perusal of the record of the investigation, has submitted that during the investigation of the case it was concluded that the petitioner had not participated either in the abduction of the deceased or his beating as alleged. The Investigating Officer, present in Court, has submitted that during the investigation of the case the allegations against the petitioner of abducting and giving beating to the deceased were found false. The Investigating Officer, present in Court, has submitted that he received evidentiary material, during the investigation of the case, establishing that the petitioner had rather helped the deceased while he was injured. No recovery was affected from the petitioner during the investigation of the case. The FIR itself shows that the petitioner had no motive to kill the deceased but the alleged motive was directed against cousin of the petitioner namely Shabbir Ahmad co-accused. The deceased

received the injuries at the house of Shabbir Ahmad co-accused at night time and the petitioner did not share the accommodation with his co-accused Shabbir Ahmad. The prosecution itself has two versions vis-a-vis the petitioner, first was of the complainant party according to which the petitioner was present at the spot and had caused injuries to the deceased and the second of the investigating agency, according to which the accused was not present at the spot at the time of occurrence. All these considerations surely render the case against the petitioner one of further inquiry into his guilt which can only be undertaken by the learned trial Court after recording of the evidence. Reliance in this regard is placed on the cases titled as Ehsanullah v. The State (2012 SCMR 1137), Nasar v. The State and others (2017 SCMR 130) and MUHAMMAD ASLAM Versus The STATE and others (2016 S C M R 1520). The petitioner namely Bashir Ahmad was arrested in this case on 19.04.2019 and since then he is behind the bars. The petitioner is a previous non-convict and never involved in any case. Investigation qua him is complete and his person is no more required for further investigation, therefore, his continued incarceration would not serve any beneficial purpose at this stage. Mere involvement in a heinous offence is no ground for refusing bail to an accused who otherwise becomes entitled for the concession of bail.

5. For what has been discussed above, the case of the petitioner becomes one of further inquiry covered by subsection (2) of section 497, Cr.P.C. Liability of petitioner for the said

offences would be determined by the learned trial court after sifting the evidentiary worth of the material produced before the same. Till then, case of petitioner would be within the domain of section 497(2), Cr.P.C. calling for further inquiry into the petitioner's guilt. The petition in hand is accepted and the petitioner is admitted to post-arrest bail subject to his furnishing bail bond in the sum of Rs.500,000/- (rupees five hundred thousand only) with two sureties, in the like amount, to the satisfaction of learned trial court.

6. Needless to mention that any observations made in the above order are tentative in nature and shall not influence the trial court.

***(Sadiq Mahmud Khurram)***  
***Judge***

***RAHEEL***

***Approved for Reporting***  
***Judge***